



Purchase Order N° FM-64240188

14/05/2024

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Delivery Address

Synchrotron SOLEIL
L'Orme des merisiers
Départementale 128
91190 Saint-Aubin
FRANCE

Delivery time : Monday to Friday
8.30 am - 11.30 am and 2.00 pm - 4.30 pm

Invoicing Address

Synchrotron SOLEIL
L'Orme des merisiers
Départementale 128
91190 SAINT-AUBIN
FRANCE

Contractor

DM DEVICES
Hamngatan 29
81161 Sandviken
Suède

Quote N° : 2024-05-31

Supplier contact :

Supplier phone N° : 46+ 76 241 93 00

Supplier fax N° :

Purchase requisition : 064971

Supplier ref.	Description	Qty	VAT %	Unit price EUR	Amount EUR	Total EUR
	Custom made 3-axis stepper motor controller					
000	Assembled and tested 3-axis motor controller PCB,	1,00	20,00	500,00	500,00	500,00
000	PCB design and documentation,	1,00	20,00	300,00	300,00	300,00
000	Software development and documentation,	1,00	20,00	300,00	300,00	300,00
Factures / Invoices to : finances@synchrotron-soleil.fr TVA / VAT : FR27439684903						

Terms of payment :

30 jrs fin de mois date d'émission de facture / 30 days following the end of the month of the invoice date

Total excl. VAT	:	1 100,00
VAT	:	0,00
Total EUR	:	1 100,00

Purchase contact : MINAEIAN F. 0169359520

Financial contact : PLATEK M. 0169359536 / COURTOT C. 0169359527

Technical contact : NEMETH G.0169359653

Requested delivery date : 22/05/2024

Responsable du groupe Achats

AURELIA DESPORT

✓ Certified by yousign

ARTICLE 1 – FIELD OF APPLICATION

The present general conditions of purchase are automatically applicable to orders placed by SOLEIL, for provisions of services and supplies that are the object of the said orders.

The documents applicable to the order are referred to in the special conditions, as appropriate.

In the event of a contradiction or divergence of interpretation between the provisions of the different documents relating to the order, it is expressly agreed that the provisions of a given document shall prevail over those of another document according to the numbered order indicated in the special conditions.

The general conditions of sale of the Owner, regardless of form and content, are void as against SOLEIL.

ARTICLE 2 – SUB-CONTRACTING

The Owner may not employ sub-contracting for all or any part of the order other than with the express, prior agreement of SOLEIL, in accordance with the Law No. 75-1334 of 31 December 1975, modified, relating to sub-contracting.

Provisions of services that are the object of the sub-contracting must be clearly identified.

In any event, the Owner remains personally responsible towards SOLEIL for compliance with all the obligations arising from the order.

ARTICLE 3 – PLACE AND LEAD TIME FOR EXECUTION

The place and lead time for execution of the provisions of services appear on the purchase order or, in default of this, on the documents appended to it.

Except for provision to the contrary expressly provided in the special conditions, the starting point for the execution lead time for the provision of the services shall take effect from the time of the receipt of the order by the Owner.

ARTICLE 4 – QUALITY ASSURANCE

The special conditions may provide for application of standards and for the drawing up of a Quality Assurance Plan by the Owner.

In the case of a failing in this respect, SOLEIL reserves the option at any time to break off the execution of the order. If the Owner reveals itself incapable of remedying its failings, the order can be automatically terminated, with the Owner being found at fault, without prior letter of notice or indemnity. In any case, the provisions of service shall be executed in accordance with the rules of good practice and the standards in force.

ARTICLE 5 – SUBMISSION OF DOCUMENTS

All documents that may be submitted by the Owner to SOLEIL, in accordance with the special conditions, referring to their implementation on behalf of SOLEIL.

Each of these shall be submitted to SOLEIL on re-writable support. Documents that are submitted to the Owner by SOLEIL shall be returned to the latter at the end of the order or if and when it is terminated.

ARTICLE 6 – VERIFICATION AND FACTORY TESTS OF THE SUPPLY

The supply will be the subject to factory tests and technical verifications which will be intended to determine that it meets the requirements and characteristics required by SOLEIL.

These tests and technical verifications, whose date will be set by joint agreement, shall be carried out in the presence of both parties and may give rise to a report being drawn up to be signed by both parties.

The successful completion of the tests and technical verifications shall not in any respect diminish the responsibility of the Owner until acceptance of the supply has been declared by SOLEIL.

ARTICLE 7 – DELIVERY CONDITIONS

All costs and risks associated with the package or packaging, transport and delivery shall be the responsibility of the Owner.

Unless specified otherwise in the order, delivery of the supply shall be made to Magasin du Pavillon d'Accueil – L'Orme des Merisiers – Départementale 128 - 91190 SAINT-AUBIN.

ARTICLE 8 – NON CONFORMITY OF THE SUPPLY

Any supply that does not conform or that is damaged during transit shall be rejected by SOLEIL and returned, carriage to pay, to the Owner within a period of fifteen (15) days of its delivery.

ARTICLE 9 – VERIFICATION – ACCEPTANCE OF THE PROVISIONS OF SERVICES – TRANSFER OF OWNERSHIP

The provisions of services shall be accepted by SOLEIL, after verification, subject to the Owner making corrections and/or additional work in respect of aspects not executed in accordance with the order and, as appropriate, after submission of all the documents drawn up in the course of the execution of the order.

The transfer of ownership and of risks operates at the time of the acceptance of the provisions of services.

No clause of reservation of ownership may be enforced against SOLEIL.

ARTICLE 10 – TECHNICAL APPROVAL OF THE SUPPLIES – TRANSFER OF OWNERSHIP

Technical approval shall be deemed to have been acquired by the Owner following a period of fifteen (15) days after delivery of the supply without reserves on the date and at the location referred to at Article 7.

The transfer of ownership and of risks operates through technical approval.

No clause of reservation of ownership may be enforced against SOLEIL.

ARTICLE 11 – ACCEPTANCE OF WORKS AND SUPPLIES INVOLVING ASSEMBLY – TRANSFER OF OWNERSHIP

Acceptance of the works and supplies including assembly shall be deemed acquired by the Owner following a period of fifteen (15) days after their implementation or acquired following signature of a report signed by the Owner and by SOLEIL.

The transfer of ownership and risks operates through acceptance.

No clause of reservation of ownership may be enforced against SOLEIL.

ARTICLE 12 – WARRANTY

Notwithstanding acceptance by SOLEIL of the provisions of services, the Owner undertakes at their own expense and risks to correct any error or omission that may affect them, within the deadline that shall be set by SOLEIL. These corrections shall be made within the deadline set by SOLEIL.

The duration of the contractual warranty is one (1) year as from the date of acceptance applied under the conditions provided in Articles 9-10 and 11.

Throughout the duration of the warranty, the Owner undertakes, at its own expense, to correct any error or omission affecting its provision of services, and in particular for supplies, to replace any item that is defective, or which prevents their proper operation.

ARTICLE 13 – INVOICING CONDITIONS

All invoices issued by the Owner in respect of the order must carry the order reference, and shall be sent by mail to: finances@synchrotron-soleil.fr

Each invoice must detail the amount exclusive of taxes, the amount of Value Added Tax as well as the amount inclusive of all taxes.

ARTICLE 14 – PAYMENT CONDITIONS

All payment for the supply accepted shall be made by SOLEIL thirty (30) days, month ending following the issue of the invoice, by cheque or postal or bank transfer.

The amount for the present order is subject to Value Added Tax at the level in force on the date of the operative event.

ARTICLE 15 – LATENESS PENALTIES

In the event of lateness in execution in respect of the delivery lead times of the order, the Owner shall be liable to pay a penalty at the level of 0.2% calculated on the amount exclusive of taxes of the order, per calendar day of lateness determined following the contractual delivery date.

This penalty will be automatically applicable and without prior notice, subject to the corresponding payment term.

The amount of penalties is capped at 10% (ten percent) of the amount, excluding taxes, of the order.

The option open to SOLEIL for the application of penalties does not dispense the latter from the option of claiming a reparation on the part of the Owner through the engagement if its contractual responsibility.

ARTICLE 16 – CONFIDENTIALITY

All information relating to the order and to SOLEIL and to its activities, that is not in the public domain, shall be considered to be strictly confidential by the Owner. In consequence, the Owner undertakes:

- not to communicate such information to third parties, or to reproduce, or publish it, in any way whatsoever, without the express, prior agreement of SOLEIL.
- not to use the information, knowledge, results, regardless of their form or content, of which it may obtain knowledge even by chance, during the execution of the order or which may have been obtained or generated on the occasion of its execution, without the prior, written authorisation of SOLEIL.
- to keep this information strictly confidential for a period of five (5) years after expiry of the order.

The Owner undertakes to impose this present obligation of confidentiality upon its employees or sub-contractors, as appropriate.

ARTICLE 17 – INTELLECTUAL PROPERTY

SOLEIL retains all rights of intellectual property relating to the information and/or documents of any kind communicated to the Owner for the execution of the order.

SOLEIL shall acquire all the intellectual property relating to the results, of any nature whatsoever and in any form whatsoever, arising from the execution of the order and shall have free use thereof, without any restriction, for any purposes whatsoever.

ARTICLE 18 – FISCAL AND SOCIAL OBLIGATIONS OF THE OWNER

The Owner shall comply with the regulations relating to access, safety, discipline, and health in force in the premises of SOLEIL or designated by it, and more generally, all instructions given to it by SOLEIL. It shall provide the same undertaking in respect of its personnel and its sub-contractors, if any, to whom it is required to communicate all instructions.

By application of the provisions of Article 8 of the Decree No. 2005-649 of 6 June 2005, the Owner must have made the declarations incumbent upon it in respect of fiscal and social affairs and must have paid taxes and subscriptions owing by 31 December of the year prior to notification of the order.

ARTICLE 19 – LIABILITY – INSURANCE

19.1 Civil liability

The Owner is responsible, under the conditions of ordinary law, for damages of any kind, that it, its employees, SOLEIL, the employees of SOLEIL, or third parties may suffer, or that their property may suffer, on the occasion of the execution of the order.

19.2 Insurance

The Owner must take out and maintain currently valid, the insurance policies necessary in order to cover a sufficient amount, taking into account the possibilities associated with the order in relation to insurance, the risks and liabilities incumbent upon it, both by virtue of ordinary law and its contractual undertakings.

The Owner must produce, at the request of SOLEIL, attestations of civil, general, and professional liability insurance, as issued by its insurance company, dated from within the past six months, indicating the number of the insurance contract and its effective date, the guarantees provided, their amounts and excesses, the activities, nature of provisions of services, or missions covered and attesting that they are up to date with payment of the premiums.

ARTICLE 20 – CANCELLATION

In the case of non-respect on the part of the Owner of any of its obligations, SOLEIL may, at any time, subject to providing notice of ten (10) days, automatically cancel the order, without prejudice to the damages it may also be entitled to claim.

ARTICLE 21 – APPLICABLE LAW – DISPUTES

The present order is subject to French law. Any dispute relating to the validity or execution of the order that cannot be resolved amicably between the Parties shall be subject to the competent courts.

Quote

Valid to
Quoted amount

2024-05-31
EUR 1 100,00

DM Devices

David Molnar
contact@dmdevices.se
+46762419300

SC SYNCHROTRON SOLEIL
L'Orme des Merisiers RD 128
911 90 SAINT-AUBIN
France

Quote number	1	Quote date	2024-05-07
Customer number	5	Payment terms	30 Days
Customer reference	Gergely Németh	Overdue payment interest	0
Your VAT no.	FR27439684903		

Description	VAT	Quantity	Unit price	Amount
Assembled and tested 3-axis motor controller PCB	0%	1 piece	500,00	500,00
PCB design and documentation	0%	1	300,00	300,00
Software development and documentation	0%	1	300,00	300,00
Article 138 of the VAT directive				

Terms of delivery: Ex warehouse

Amount ex VAT	EUR 1 100,00
Quoted amount	EUR 1 100,00

DM Devices
Hamngatan 29
811 61 Sandviken
Org no. 9009267791, VAT no. SE900926779101
F-Skatt Approved